

Vinod Kumar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 7 December 2017 · WRIT - C No. 58486 of 2017 · **Writ dismissed; petitioner relegated to Clause 6.5.**

HEADNOTE

A writ challenging a demand notice to deposit Rs. 5,26,560 was dismissed because the consumer, who disputed the amount, had an alternative remedy under Clause 6.5 of the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Vinod Kumar filed a writ petition in the Allahabad High Court challenging a notice dated 1 March 2017 asking him to deposit Rs. 5,26,560. He disputed that amount. Counsel for Dakshinanchal Vidyut Vitran Nigam Limited submitted that the petitioner had an alternative remedy under Clause 6.5 of the Electricity Supply Code, 2005. The Court accepted that submission and dismissed the petition on the alternative remedy.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

alternative remedy for disputed demand

HOLDING

A consumer who disputes the amount demanded in a notice to deposit has an alternative remedy under Clause 6.5 of the Electricity Supply Code, 2005, and a writ petition challenging that notice is dismissed on that ground. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DEMAND OF RS. 5,26,560 IN THE NOTICE DATED 1 MARCH 2017

Left to the Clause 6.5 remedy. ¶ 1